



Republic of the Philippines
DEPARTMENT OF LABOR AND EMPLOYMENT
Intramuros, Manila



DEPARTMENT ORDER NO. 248-B

Series of 2026

DOLE-RS 11JUN'26 1554

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SUBJECT : CENTRALIZING THE FILING, PROCESSING, EVALUATION, APPROVAL, ISSUANCE, RELEASE, ADJUDICATION, AND ENFORCEMENT FUNCTIONS RELATING TO ALIEN EMPLOYMENT PERMITS, AND AMENDING RELEVANT PROVISIONS OF DEPARTMENT ORDER NOS. 248 AND 248-A, SERIES OF 2025

DATE : 11 June 2026

WHEREAS, Articles 5, 40, 41, and 128 of Presidential Decree No. 442, otherwise known as the Labor Code of the Philippines, as amended, vest upon the Department of Labor and Employment (DOLE) the authority to regulate the employment of foreign nationals and administer the issuance of Alien Employment Permits (AEPs);

WHEREAS, Department Order No. 248, Series of 2025, as amended by Department Order No. 248-A, Series of 2025, established the rules and procedures governing the issuance of Alien Employment Permits, Certificates of Exemption, and Certificates of Exclusion;

WHEREAS, the Department recognizes the need to strengthen labor market governance, uphold the primacy of Filipino labor, and ensure that the employment of foreign nationals remains consistent with national development priorities, labor market conditions, and the protection of employment opportunities for Filipino workers;

WHEREAS, there is a need to establish a more efficient, transparent, accountable, and uniform system for the administration of Alien Employment Permits by centralizing the filing, processing, evaluation, approval, issuance, release, adjudication, and enforcement functions under the Central Office;

WHEREAS, this centralization will ensure the consistent application of laws, regulations, policies, standards, and economic needs assessments governing the employment of foreign nationals throughout the country;

WHEREAS, the Bureau of Local Employment (BLE), as the staff bureau under the Department of Labor and Employment with the mandate to establish and maintain a registration or work permit system to regulate employment of foreign nationals, possesses the technical capability to administer and oversee a centralized Alien Employment Permit system and related regulatory functions;

WHEREAS, there is a need to ensure the orderly turnover of pending applications, records, inventories, databases, and related documents, both physical

and electronic, from the DOLE Regional Offices to the Central Office in order to facilitate a seamless transition to a centralized processing framework;

WHEREAS, the facilitation of inventory, consolidation and securing of all AEP documents is to safeguard the foreign nationals' sensitive personal information in compliance and strict adherence with Republic Act No. 10173 (*Data Privacy Act of 2012*);

NOW, THEREFORE, pursuant to the authority vested in the Secretary of Labor and Employment under the Labor Code of the Philippines, as amended, the Revised Administrative Code of 1987, and other applicable laws, rules, and regulations, the following are hereby promulgated:

SECTION 1. Objectives. – This Order seeks to strengthen the administration and regulation of the Alien Employment Permit system; ensure the uniform implementation and interpretation of laws, policies, standards, and procedures governing the employment of foreign nationals; enhance transparency, accountability, efficiency, and regulatory oversight in the processing and adjudication of applications and related proceedings; strengthen labor market governance through centralized evaluation and economic needs assessment; and protect employment opportunities for Filipino workers while ensuring compliance with applicable laws and regulations governing foreign nationals.

SECTION 2. Centralization of AEP Functions. – All functions relating to the receipt, filing, processing, evaluation, review, approval, issuance, release, adjudication, enforcement, cancellation, revocation, renewal, and administration of Alien Employment Permits (AEPs), including applications for Certificates of Exemption and Certificates of Exclusion and submission of Understudy Training Program (UTP) and Skills Development Program (SDP), are hereby centralized under the DOLE Central Office through the Bureau of Local Employment (BLE).

The BLE shall serve as the primary office responsible for receiving applications, conducting technical review and evaluation, administering the Economic Needs Test (ENT), approving or denying applications as authorized under existing rules, maintaining official records, and releasing approved permits and certificates.

SECTION 3. Transition of the functions and authority to the BLE and Director of BLE. – Pursuant to the Centralization of the AEP Functions, except for the Motion for Reconsideration on the Order cancelling or revoking the AEP, all sections and/or provisions referencing to the "Regional Offices and/or Regional Directors" shall be substituted with the "Bureau of Local Employment" in lieu of Regional Offices and "Director of Bureau of Local Employment" in lieu of Regional Director.

Accordingly, in view of the foregoing, the following Rules and Sections are deemed amended to reflect the substitution:

- i. **Rule II** (*Requirements and Procedures in Applying for AEP*), Sections 1, 3, 4, 6, 7, 8, 9, and 10;
- ii. **Rule III** (*Applications for Renewal and Additional Position*), Sections 2, 3, 4, and 5;
- iii. **Rule IV** (*Cancellation and Revocation*), Sections 1, 3, 4, 7, and 9;
- iv. **Rule V** (*Exemptions and Exclusions from AEP*), Sections 2, 4, 5,

- 6, and 7;
- v. **Rule VI** (*Duties and Responsibilities of the Employer and the Foreign National*), Sections 1, 2, 3 and 4;
 - vi. **Rule VII** (*Prohibited Acts and Administrative Penalties*), Section 2; and
 - vii. **Rule VIII** (*Management, Administration and Enforcement*), Sections 2 and 3.

SECTION 4. *Motion for reconsideration; effect.* – Rule IV, Section 6 is hereby amended to read as follows:

“SECTION 6. *Motion for reconsideration; effect.* The employer or foreign national may file a motion for reconsideration with the Director of the DOLE Legal Service on the order cancelling or revoking the AEP within ten (10) calendar days from receipt thereof. The order of revocation shall be immediately executory upon denial of the motion for reconsideration.”

SECTION 5. *Submission of Inventories, Status Reports and Sworn Certifications.* – Within seventy-two (72) hours from the effectivity of this Order, all Regional Offices shall submit to the Bureau of Local Employment, under oath, the following:

- a. A complete inventory of all Alien Employment Permits approved and/or released within the last six (6) months immediately preceding the effectivity of this Order;
- b. A complete inventory of all pending applications for AEPs, Certificates of Exemption, and Certificates of Exclusion, indicating the applicant, employer, position, date filed, current status, and action taken thereon;
- c. A complete inventory of all applications received but not yet acted upon, together with the corresponding reasons for pendency; and
- d. Such other information, records, and reports as may be required by the Bureau of Local Employment.

The inventories and reports required herein shall be accompanied by a cover certification under oath by the concerned Regional Director containing a declaration as to their completeness and accuracy.

SECTION 6. *Turnover of Records and Pending Applications.* – Within the same seventy-two (72)-hour period, all Regional Offices shall transmit and turn over to the Bureau of Local Employment all physical and electronic records pertaining to pending and unresolved applications for Alien Employment Permits, Certificates of Exemption, and Certificates of Exclusion, including supporting documents, evaluation reports, endorsements, databases, correspondence, and related records.

This physical transfer of records and pending applications shall be supervised by the Bureau of Local Employment which shall assume custody and jurisdiction over all pending applications and proceedings covered by this Order.

SECTION 7. *Authority to Issue Supplemental Guidelines.* – The Bureau of Local Employment is hereby authorized, subject to oversight by the proper Undersecretary as designated by the Secretary, to issue supplemental guidelines,

operational procedures, directives, manuals, and implementation protocols necessary to effectively carry out the provisions of this Order and facilitate the transition to a centralized processing framework.

SECTION 8. *Administrative and Technical Support.* – All bureaus, services, regional offices, and attached agencies of the Department shall provide the necessary administrative, technical, and operational support to the Bureau of Local Employment in the implementation of this Order.

SECTION 9. *Funding.* – The implementation of this Order shall be funded from existing appropriations of the Department and from such future appropriations as may be authorized for the purpose, subject to applicable budgeting, accounting, and auditing laws, rules, and regulations.

SECTION 10. *Separability Clause.* – If any provision of this Order is declared unconstitutional or invalid, the remaining provisions not affected thereby shall continue to be in full force and effect.

SECTION 11. *Repealing Clause.* – All prior guidelines, Department Orders, program advisories, or procedural rules, including portions of Department Order No. 248, Series of 2025, and Department Order No. 248-A, Series of 2025, inconsistent with this Order are hereby amended, modified, or repealed accordingly.

SECTION 12. *Effectivity.* – This Order shall take effect immediately upon issuance and shall be in full force and effect unless otherwise revoked.

For the information and guidance of all concerned.



11 June 2026